

Development Office

STAFF REPORT

Kornegay Subdivision **Summation**

Zone District Map Amendment Process

CASE NUMBER(s): UDC-13-00205

FILE CODE: KGH-Z

PREPARED BY: Brett Walker

MEETING July 1, 2013 – Planning Commission

DATES: July 8, 2013 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Complete Application
- Zone Change Exhibit Map

RECOMMENDATION: The Planning and Development Office recommends approval of the zone change request from **MR-2 Medium Density Residential – Developing** to **CB Community Business**, pursuant to criteria outlined in Section 2.2.1.d of the Cheyenne UDC.

STAFF REPORT UPDATE (7/2/2013): At its regular meeting Monday, July 1, 2013, the City of Cheyenne Planning Commission recommended approval of the above described Zone Change by a unanimous vote of 4 to 0. The recommendation was made pursuant to the criteria outlined in Section 2.2.1.d of the UDC.

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MEETING DATES: July 1, 2013 – Planning Commission
July 8, 2013 – City Council

OWNER: Scion, LLC
5827 Yellowstone Road
Cheyenne, WY 82009

AGENT: Brad Emmons
A.V.I., P.C.
1103 Old Town Lane, Suite 101
Cheyenne, WY 82009
307-637-6017

PROJECT: Kornegay

WORK DESCRIPTIONS: Zone Change to accommodate parking lot expansion

LOCATION:

- (1) Legal Description: Lot 4, Block 1, Kornegay Homesites, 2nd Filing, Cheyenne, Wyoming
- (2) Location: north of and adjacent to Kornegay Court, between Yellowstone Road and Sunset Drive
- (3) Address: Vacant

SIZE: Total Area: 10,803 sqft

CURRENT ZONING: MR-2 Medium Density Residential – Developing District

PROPOSED ZONING: CB Community Business District

EXISTING LAND USE: Vacant

PROPOSED LAND USE: Parking Lot

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Residential	MR-2	City
South	Commercial	CB	City
East	Residential	MR-2	City
West	Commercial	CB	City

EXECUTIVE SUMMARY: This Zone Change request has been submitted in order to facilitate a parking lot expansion for Wyoming Bank and Trust, which recently completed an expansion of the principal structure on site in 2010. Specifically, the request is for the single lot to be changed from **MR-2 Medium Density Residential – Developing to CB Community Business**. If approved, this request will bring the lot under the same zoning requirements as the rest of the site to the west. Further development of the lot project will require a Site Plan Review for the entire site, at which time the parking, landscaping, accesses and other design requirements will be evaluated for compliance.

ZONE CHANGE DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed preliminary plat, the Staff, Planning Commission and City Council shall use the following criteria:

PLANCHEYENNE. *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

The Future Land Use Plan recommends Mixed-Use Commercial Emphasis for this area (see attached aerial map). The Mixed-Use Commercial category is intended to promote a range of land uses, with primarily retail, office, light industrial, and live/work designed as an “activity center”. Parks, plazas and/or open space should also be part of the core of Mixed-Use Commercial areas. Apartments and townhomes and other residential uses are also encouraged as part of the mix of uses. Places of worship and other public or civic uses are also appropriate. The site is also located very near to an area identified as a Mixed-use Commercial Activity Center. As such, CB Community Business is an appropriate underlying zone district as recommended.

SURROUNDING AREA. *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

This is an established neighborhood with a long history of both commercial and residential

development. As Cheyenne has grown, the commercial businesses along Yellowstone have expanded. Such is the case with Wyoming Bank and Trust, the applicant in this request. The lot directly to the south of this one, across Kornegay, is zoned CB and is currently occupied by a custom picture framing and retail business. Also existing along Kornegay are a veterinary clinic, construction business and warehouse (Siding Specialists), a picture-framing shop, and an educational facility operated by Stride Learning Center. It is typically desirable to have similar uses facing each other across a street, with use transitions occurring mid-block (e.g., across an alley).

ZONING, BASIC STANDARDS & USES. *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district;*

This Zone Change enables the lot to become more integrated with the rest of the bank site, which is zoned CB. In general, it is not good practice to have two or more zone districts on a single, integrated site. While parking lots are allowed in an MR-2 District, they are subject to different regulation and design requirements. Furthermore, if the lot remains MR-2, it will not be subject to the required 15' landscape strip between a CB and MR-2 district, which in this case will provide a buffer to the lower density development to the north and east (*ref., Table 6-10, UDC*).

STREETS & OPEN SPACE. *The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning;*

This Zone Change request will not preclude the area from further development according to the standards laid out in Article 4. Lot access is currently onto Kornegay Court, a local road, and the surrounding street network is well established. The block perimeter requirements are met (and do not change). Sidewalk, curb, and gutter will be required and built to current City standards. The site also appears to be within a quarter of a mile from the Greenway.

ZONING, INTENT, APPLICABILITY & DESIGN OBJECTIVES. *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

The CB District is intended for Retail, Employment, Service and Civic uses that may serve a number of residential neighborhoods or other districts in meeting daily needs, discretionary needs, or other business functions. The district regulations are designed to encourage these uses, while also protecting the abutting and nearby areas, such as a required 15' landscaped buffer between this lot and the surrounding MR-2 Lots to the north and east. This district should employ a well-connected internal network to facilitate a park once, walkable atmosphere and good internal circulation, and transitions to adjacent areas should be designed to minimize impacts on surrounding areas and transportation networks.

This zone district is intended for commercial use, such as the expansion of off-street parking and internal circulation being proposed with this application. The proposal is also adjacent to the commercial activity along Yellowstone and along Kornegay to the west and south. The location of this zone district is consistent with the intent, applicability and context described in the zone district (*ref. 5.4.2.a-c, UDC*). The proposal is located in an area with an established transportation network to accommodate it.

ZONING, FUTURE DEVELOPMENT. *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

It is anticipated that the parking lot expansion will take place in the very near future. However, should the expansion not materialize, and the CB zoning is in place, this lot will still have a few options should the proposed project not materialize, although a residential use will not be one of them. If it is developed without integration with the site to the west, the relatively small size of the lot will constrain the intensity of the use.

REVIEWING AGENCY AND REVIEWERS COMMENTS: None

AGENCIES AND REVIEWERS RESPONDING WITHOUT COMMENTS: City Attorney, County Assessor, Engineering-General, Engineering Tech/GIS, Urban Planning

AGENCIES AND REVIEWERS NOT RESPONDING: None

OTHER COMMENTS RECEIVED:

Encl: Zone Change Exhibit Map
Aerial Map

cc: Owner
Agent/Applicant
File

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE PURSUANT TO SECTION 2.2.1, ZONING MAP AMENDMENTS, SECTION 5.1.2, ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3, OFFICIAL ZONING MAP, OF THE CHEYENNE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM MR-2 MEDIUM DENSITY RESIDENTIAL - DEVELOPING TO CB COMMUNITY BUSINESS FOR LOT 4, BLOCK 1, KORNEGAY HOMESITES, 2ND FILING, CHEYENNE, WYOMING (LOCATED NORTH OF AND ADJACENT TO KORNEGAY COURT, BETWEEN YELLOWSTONE ROAD AND SUNSET DRIVE)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner of the property described herein, has applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on July 1, 2013, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 4, Block 1, Kornegay Homesites, 2nd Filing, Cheyenne, Wyoming, is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

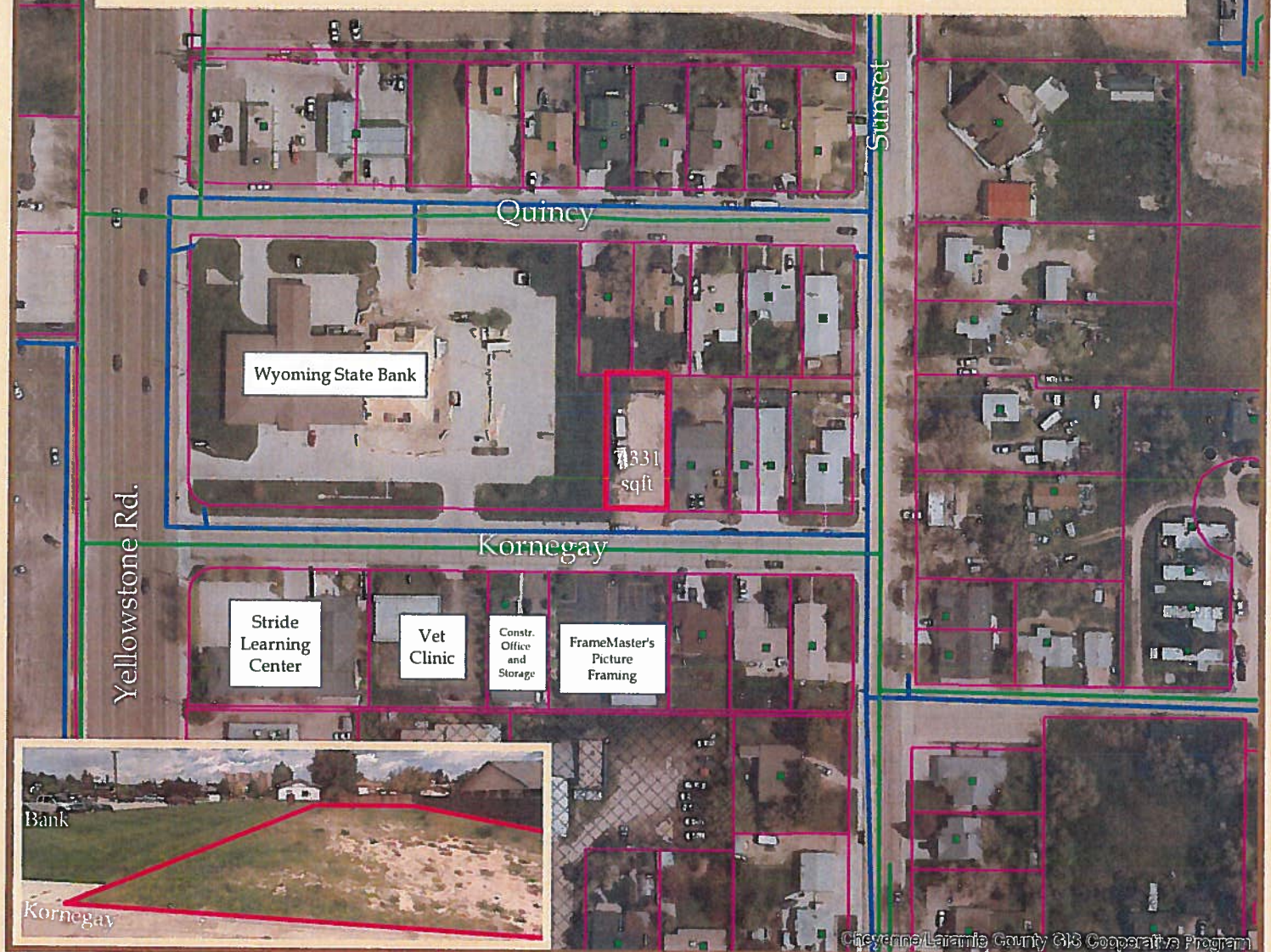
RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

LOT 4, BLOCK 1, KORNEGAY HOMESITES, 2ND FILING



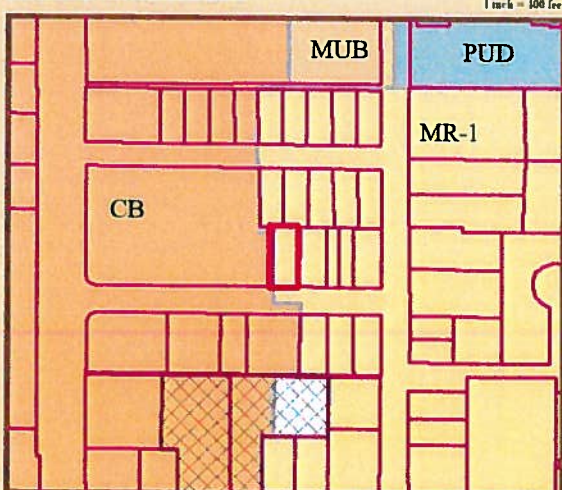
Applicant: Scion, LLC
 Agent: Brad Emmons, AVI, PC
 Application Number: UDC-13-00205
 Zone Change Request

- Ownership
- County Jurisdiction
- Water Mains
- Sanitary Sewer Mains

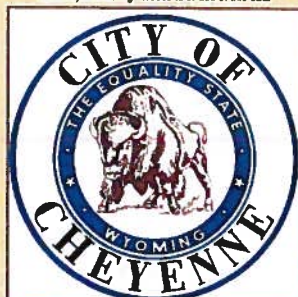
1 in = 150 ft

Will require a Site Plan Review
 before any development can occur.

Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.



10 June 2013

BRW

Future Land Use Map

